

UNIVERSITY OF PORT HARCOURT

FACULTY OF LAW

NIGERIAN LEGAL SYSTEM

TOPIC: THEORIES OF LAW

What is law?

The word “law” can be interpreted to mean a lot of things. For example, we have the law of gravity, the law of demand and supply and we have criminal law. How do we know the particular meaning of law that is relevant to a law student?

Basically, **Law is a body of rules which govern human conduct**. Law is not just contained in a single document. If it were so, there would be no need for lawyers. Law can be found in several sources. For example, in Nigeria, laws can be found in the Constitution, statutes and case laws. All these together make up the body of Nigerian law.

Theories of law

Theories of law refers to the different schools that have given or offered explanations about the nature of law based on their perspective or how they law. The schools of thoughts are as follows:

1. Natural Theory of Law

The natural law theory of law was propounded by people like **ZENO, THOMAS AQUINAS, ARISTOTLE** and **GROTIUS**. They are of the view that law can be deduced by man from reason (thinking) as to what is right or wrong. This theory of law is of the position that there is an innate tendency (inner mind) in all humans helping to distinguish right from wrong. Natural law is simply what is “right, just and fair”. Natural theory was invoked by the Americans in their struggle of liberation from Britain, also by the French during their revolution, and in the abolition of slave trade and also is now being used to justify homosexuality.

However, there are numerous criticisms for this theory of law:

- ❖ First is the fact that unless natural law is promulgated/enacted/made as a law, it does not carry the force of law and would not be enforceable. At best, it would be considered as a moral rule. A very good example is the fact that the Criminal Code which operates in Southern Nigeria doesn’t criminalise adultery. However according to Section 387 and 388 of the Penal Code, which operates in Northern Nigeria, adultery is an offence.
- ❖ Also, the dictates of natural law are usually seen subjectively. What is fair, equitable and just to one person may not be fair, equitable and just to another person. This issue is what

has made natural law to be referred to as a harlot. A very good example of this is in the clamour for homosexuality. The homosexuals and their supporters are of the view that it is only fair and just for them to be allowed to have sexual intercourse with anyone they choose. Those who oppose it on the other hand are of the opinion that homosexuality is against the order of nature and should thus be prohibited. Thus, it would be problematic if everyone in the society is left to choose what is right and wrong on the basis of how he feels.

2. The Positivist Theory of Law

This theory of law was propounded by **John Austin**. He proposed the positive/command theory of law, which is also regarded to as the positivist school. According to him in his book, he defined law as “a command set by a superior being to inferior beings and enforced by sanctions.” By this definition, it means that the only things that can be regarded as law are those that are enacted as law by the person authorized to do so. The definition has the following elements:

- The existence of a definite sovereign.
- The sovereign is without legal limitation in the exercise of his power.
- The subjects (inferior people) must be in the habit of obeying him because of his coercive power to impose sanctions.

The positivist theory of law has been criticized on numerous grounds.

- ❖ First, not all laws are couched as commands. For example, the provisions contained in Chapter II of the 1999 Constitution which deal with the fundamental objectives and directive principles of state policy are not binding on the government of the nation, thus it is not a command. Etc ..
- ❖ Another criticism is the fact that positive law is only concerned with the fact that the sovereign enacts a law. It is not concerned with whether or not the law is moral or acceptable to the society.
- ❖ Also, the idea of an un-commanded commander(sovereign), who has no legal limitations, would not be applicable in today's world. Even if it is a military regime, the military is still bound by the provisions of the laws it makes. For example, in the case of **Ojukwu Vs Governor Of Lagos State**, the action of the military governor in evicting the defendant from his property without following due process was held to be *ultra vires* (illegal) and null and void by the court.
- ❖ Finally, not all human beings obey the law because of the sanctions attached to it. Some people just do not contravene the law because it is their nature. For example, some people abstain from murder not just because of its punishment but because they find the killing of a fellow human being repulsive and against their nature.

3. The Pure Theory of Law

This theory of law is led by **PROFESSOR HANS KELSON**. It is of the view that law is a system of norms accepted by the society to be binding. Each of these norms trace their validity to a higher norm until it gets to the *grund norm*. The *grund norm* is the norm from which other norms derive/get their validity. For example, murder is unlawful because it can be traced to the provision of section 315 of the Criminal Code. The Criminal Code is valid because it was enacted by the legislature. The legislature's powers to make laws is valid because it is provided for under section 4 of the 1999 Constitution. The Constitution is also valid because it originates from the people and is accepted by them.

- ❖ This theory of law has been criticized because it posits that a law is valid if it satisfies the requirement of being backed by a higher norm. It does not concern itself with the morality or immorality of the said law.
- ❖ Another criticism of this theory is due to the fact that it is not always easy to trace the *grund norm* in a given society. The assertion that the Constitution is the *grund norm* is one based on false logic. This is due to the fact that it is said that the constitution gets its power from the people. But in the Nigerian situation, we are not sure if it is the people that provided the constitution or the military government.
- ❖ Also, a *grund norm* is only effective as long as it is respected by the people it seeks to govern. If it loses the confidence of the people through a revolution or a coup d'état, it would become ineffective. A practical example is the fact that the 1999 Constitution provides in section 1(2) that no one can operate the government of Nigeria except in accordance with the provisions of the Constitution. However, when there is a successful coup, this section and a host of others are removed by the military government in power.

4. Historical Theory of Law

This theory was propounded by **FRIEDRICH CARL VON SAVIGNY**. The theory was propounded in order to counter the influence of the natural theory of law in overthrowing monarchs in 17th and 18th century Europe.

The theory is of the view that law should be made in accordance with the custom of the people. This custom, referred to as **volksgeist**, is the spirit of the people and what binds them together. Thus, attempts should not be made to make laws that would deviate from the customs and way of life of the people.

- ❖ One of the criticisms against this school is the fact that if it is followed dogmatically (blindly), it could hinder reforms/improvements which would turn out to be good for the society. One can only imagine how backward the society would be if strange customs like slavery and absolute monarchy were not abolished.

- ❖ Another criticism of this theory of law is the fact that it is not at all times that customs are fair and just. There are a lot of customs that segregate/discriminate a particular class of people. If this theory is to be followed to the strictly/blindly, it would put these people in perpetual bondage. This could be seen as the reason for the Evidence Act to provide in section 18(3) that a custom would only be applicable if it conforms to public policy, natural justice, equity and good conscience.

5. Sociological Theory of Law

The sociological theory gained prominence from the mid 19th century to the 20th century. One of its most prominent supporters was **EUGENE EHRLICH**. According to this school, the way the society acts determines the kinds of laws that would be laid down. If the society by its actions fails to acknowledge a law, the law is doomed /bound to fail as a means of social control.

A very good example of this is the case of corruption in the Nigerian society. Despite the enactment of many Acts like the Economic and Financial Crimes Commission Act and a host of others, corruption is still viewed as a way of life in Nigeria. Virtually everyone has at a point in time given or received a bribe. The different measures put in place to control corruption have obviously failed because the people do not support the law by their actions.

The sociological school, however, also has its own share of criticisms:

- ❖ First, it is not all the time that conduct influences the law. There are situations in which the law influences the conduct of members of the society. For instance, vehicle owners register their vehicles because of the law mandating them to do so.
- ❖ Another criticism is the fact that it is quite risky to “go with the flow”. Just because every other person is disobeying the law. Such disobedience would not excuse an offender who is caught and is being made a scapegoat. Assuming he is found guilty, it would not be a valid excuse that the offender should not be punished because virtually everyone is disobeying the law.

There is another variant or view of the sociological theory propounded by **DEAN ROSCOE POUND**, former Dean of Harvard Law School. According to him, there are limited resources in the society and thus, numerous competing claims to those resources. It is then the aim of the law to balance these competing claims in such a way that it would cause the least harm. This is done through the instrumentality of the courts.

6. The Utilitarian Theory of Law

This theory of law is championed by **JEREMY BENTHAM**. According to him, the purpose of the law is to guarantee communal utility. Utility in this sense means that which affects the happiness of the people. The law should always seek to promote the utility that would positively affect the larger part of the society.

According to this school, there are four basic utilities: security, equality, liberty and abundance. The most important one is security, followed by liberty and the remaining two. The law should always seek to balance individual interest with that of the community. For example, the law allows for the police to invade the privacy of a suspected armed robber, robbing him of his liberty, in order to guarantee the security of the society. The purpose of law, according to this school, is that achieve the maximum happiness of the maximum number of people.

- ❖ One of the criticisms against this school is that it does not specify a method for balancing the interest of the individual and community.

7. The Realist Theory of Law

This school is of American origin, and is subscribed to by people like **OLIVER WENDELL HOLMES**. According to him, “the prophecy of what the judge will say and nothing more pretentious do I mean by law”. This school posits that the law is not just what is in the books but what the court decides in the cases before it. That the pronouncements of the court on a matter is the law.

Some of the criticisms of this school are:

- ❖ They are of the view that the judge and jury, in making their decisions, are influenced by extraneous factors. For example, if a judge that has been a victim of rape or is close to a victim tries an accused rapist, there is every likelihood that she would not want him to go scot-free due to her previous experience.
- ❖ Also, a judge who is handling the trial of a former colleague or contemporary would be lenient compared to the trial of an accused who is not related to him.

Other proponents of the Realist School of Law are **JUSTICE JEROME FRANK, JOHN CHIPMAN GRAY** and **KARL LLEWELLYN**.

Which of The Theories of Law is the Best?

The above numerous theories have been explained and it can be said that all the schools are correct in their own way. This is due to the fact that the definitions of law given are affected by the subjective (personal) experiences of each of the jurists. A good example is Carl Von Savigny,

who supported the historical school because he was an aristocrat and so has an interest in maintaining the status quo.

The main idea behind the different schools can be summarised in one quick allegory of some blind men who were told to identify an elephant by touching it. The one that touched the legs described it as a tree, the one that touched the trunk called it a snake, the one for the body called it a rock and the one that touched the tusk described it as a spear. All the blind men were correct in their own right, however, they were also wrong as their perspectives were limited to only what they can feel and imagine.

It was on this ground that **PROFESSOR MRS OKUNNIGA** that: “Nobody, including the lawyer, has offered, nobody including the lawyer is offering and nobody including the lawyer will ever be able to offer a definition of law to end all definitions.”

Adv Chimdiike et Faith